§ 289.4 *Filing of charges or complaints.* All charges or complaints against unlawful enclosures or obstructions upon the public lands should be filed with the proper regional administrator. Such charges or complaints, when possible, should give the name and address of the party or parties making or maintaining such enclosure or obstruction and should describe the land enclosed in such a way that it may be readily identified. The section, township, and range numbers should be given, if possible.

2. Sections 289.5 to 289.11, and 289.13 to 289.15, are deleted from Title 43.

3. Footnote 7 to § 289.1 is amended by adding thereto the following: "Violations of any of the provisions of the act of February 25, 1885, constitute a misdemeanor (Sec. 4, 23 Stat. 322; 35 Stat. 40; 43 U. S. C. 1064)."

MARION CLAWSON,
Director.

Approved: January 10, 1949.

J. A. KRUG,
Secretary of the Interior.

[F. R. Doc. 49-359; Filed, Jan. 14, 1949; 8:47 a. m.]

Appendix—Public Land Orders

[Public Land Order 545]

IDAHO

WITHDRAWING PUBLIC LAND FOR USE OF DEPARTMENT OF NAVY; MODIFYING PUBLIC LAND ORDER NO. 318 OF MAY 13, 1946, TO PERMIT GRAZING USE OF LANDS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and section 1 of the act of June 28, 1934, as amended (48 Stat. 1269 (43 U. S. C. 315)), it is ordered as follows:

Subject to valid existing rights, the following-described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Department of the Navy as part of a Naval Proving Ground:

BOISE MERIDIAN

T. 5 N., R. 32 E.,
Sec. 15.

The area described contains 640 acres.

This order shall take precedence over but not modify the order of November 3, 1936, of the Secretary of the Interior establishing Idaho Grazing District No. 3, so far as such order affects the above-described land. The land described may be used for grazing purposes under the provisions of the act of June 28, 1934, 48 Stat. 1269, as amended by the act of June 26, 1936, 49 Stat. 1976 (43 U. S. C. 315 et seq.), at such times and in such manner as may be agreed upon by the Secretary of the Navy and the Secretary of the Interior.

Public Land Order No. 318 of May 13, 1946, withdrawing public lands for use of the Navy Department as a Naval Proving Ground, is hereby modified so as to permit the use of the lands for grazing purposes under the provisions of the act of June 28, 1934, 48 Stat. 1269, as amended by the act of June 26, 1936, 49 Stat. 1976 (43 U. S. C. 315 et seq.), at such times and in such manner as may be agreed upon by the Secretary of the Navy and the Secretary of the Interior.

It is intended that the land described above shall be returned to the administration of the Department of the Interior when it is no longer needed for the purpose for which it is reserved.

J. A. KRUG,
Secretary of the Interior.

JANUARY 7, 1949.

[F. R. Doc. 49-356; Filed, Jan. 14, 1949; 8:47 a. m.]

[Public Land Order 546]

ALASKA

REVOKING IN PART EXECUTIVE ORDER NOS. 7448 OF SEPTEMBER 12, 1936, 2242 OF AUGUST 31, 1915, 2437 OF AUGUST 9, 1916 AND 2728 OF OCTOBER 8, 1917, AND REWITHDRAWING A PORTION OF RELEASED LAND FOR USE OF DEPARTMENT OF ARMY AND REMAINDER FOR USE OF ALASKA RAILROAD

By virtue of the authority vested in the President by the act of March 12, 1914, 38 Stat. 305 (48 U. S. C. secs. 301, 302, 303, 308), and otherwise and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

SECTION 1. Executive Order No. 7448 of September 12, 1936, withdrawing public lands for use as receiving station for the Alaska Communication System is hereby revoked as to the withdrawal made thereby of the lands described by metes and bounds as follows:

Beginning at corner No. 1, at point for centerquarter corner, sec. 7, T. 13 N., R. 3 W., Seward Meridian, Alaska, monumented with a one-inch pipe, thence by metes and bounds:

East along latitudinal center-section line 1996.8 feet; S. 50° 52′ W., 287.3 feet; S. 55° 31′ W., 291.1 feet; S. 59° 47′ W., 634.1 feet; S. 54° 23′ W., 717.7 feet; S. 65° 15′ W., 113 feet; N. 52° 18′ 35″ W., 917.6 feet; N. 53° 21′ 30″ E., 212.5 feet; N. 29° 47′ E., 506.3 feet to corner No. 1, the place of beginning, containing 33.35 acres.

SEC. 2. Subject to valid existing rights the public lands described in section 1 of this order are hereby withdrawn from all forms of appropriation under the public land laws including the mining and mineral leasing laws, and reserved for the use of the Alaska Railroad.

SEC. 3. Executive Orders Nos. 2242 of August 31, 1915, 2437 of August 9, 1916 and 2728 of October 8, 1917, withdrawing public lands for use of the Alaska Railroad are hereby revoked as to the following-described lands in secs. 7, 8 and 9, T. 13 N., R. 3 W., S. M.

Beginning at the ¼ corner for secs. 7 and 8, thence by metes and bounds:

West, 730 feet along the center line of sec. 7 to its intersection with the center line of the Ft. Richardson Sewer Outfall Line;

S. 00° 03′ 40″ W., 25 feet; thence along a line generally 25 feet south of the center line of the Sewer Line,

S. 61° 37′ 16″ E., 262.6 feet;
S. 74° 18′ 35″ E., 3,905.6 feet;
N. 72° 33′ 20″ E., 1,039.7 feet;
N. 62° 11′ 20″ E., 740.7 feet;
N. 82° 11′ 05″ E., 347.5 feet;
N. 60° 17′ 59″ E., 364.0 feet;
N. 22° 49′ 17″ E., 682.1 feet;
N. 51° 38′ 42″ E., 189.6 feet;
N. 84° 25′ 22″ E., 201.9 feet;
S. 46° 02′ 30″ E., 295.2 feet;
N. 70° 42′ 50″ E., 218 feet to the east line of the SW¼NW¼ sec. 9, T. 13 N., R. 3 W.;
N. 00° 01′ 40″ W., 1,000.6 feet to the center point of the NW¼ sec. 9;
N. 89° 58′ 20″ W., 1,319.66 feet to the section line between secs. 8 and 9;
S. 00° 01′ 40″ E., 1,318.9 feet along section line to the ¼ corner for secs. 8 and 9;
West along the center line of sec. 8 approximately 1 mile to point of beginning, containing approximately 140 acres.

SEC. 4. Subject to valid existing rights, the public lands described in section 3 of this order are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Army in connection with Fort Richardson.

It is intended that the public lands reserved by section 4 shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

WILLIAM E. WARNE,
Assistant Secretary of the Interior.

JANUARY 7, 1949.

[F. R. Doc. 49-357; Filed, Jan. 14, 1949; 8:47 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 87-A]

PART 95—CAR SERVICE

FREE TIME REDUCED ON COAL AT NORTH ATLANTIC PORTS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 10th day of January A. D. 1949.

Upon further consideration of Service Order No. 87 (13 F. R. 3277, 3358, 8220) and good cause appearing therefor: *It is ordered,* That:

Section 95-87, Service Order No. 87, *Free time reduced on coal at North Atlantic ports,* be, and it is hereby, vacated and set aside.

It is further ordered, That this order shall become effective at 7:00 a. m., January 15, 1949; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402; 41 Stat. 476, sec. 4; 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 49-354; Filed, Jan. 14, 1949; 8:46 a. m.]